

Court No. - 28

Case :- WRIT - C No. - 10180 of 2019

Petitioner :- M/S Hind Industries Ltd And Another

Respondent :- The Commissioner Meerut And 4 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Rohit Ranjan Agarwal, J.

Heard Sri H.N. Singh, learned Senior Counsel assisted by Sri Mayank Agrawal, learned Counsel for the petitioner, learned Standing Counsel for respondent nos.1,4 and 5 and Sri Chandan Agarwal, learned Counsel for respondent nos.2 and 3.

Petitioner is a public limited company having its registered office at New Delhi and factory at Ghaziabad. The present petition has been filed assailing the order dated 11.2.2019 passed by the Commissioner, Meerut Division Meerut whereby the appeal filed by the petitioner company was dismissed. Case in nutshell of the petitioner is that the petitioner is having sanctioned load of 1000 KVA. On 15.8.1997, an inspection was made and seal was found tampered and the electricity supply was disconnected. An F.I.R. was lodged for theft of electricity on 16.10.1997. A criminal case was registered under Section 39 and 44 of the Electricity Act, 1910, thereafter a charge-sheet was submitted and case was converted as Case No.2361 of 1998. On 14.3.2001, Rajya Stariya Bijli Adalat (in short RSBA) held and gave benefit through assessment order to the petitioner to the tune of Rs.1,09,59,453/-. It was on the directions of the RSBA that the Executive Engineer revised and enhanced the assessment amount from Rs. 24,47,884/- to Rs.1,22,55,783/-. Petitioner was acquitted in the criminal case on 21.3.2001, as the theft could not be proved, thereafter he submitted a letter on 11.3.2002 for refund of the assessment bill of Rs.24,47,884/-. On 17.8.2002, the Executive Engineer enhanced the assessment bill to Rs.1,22,55,783/-, against which a Writ Petition No.43936 of 2002 was filed. By order dated 10.10.2002, the writ petition was disposed of with the direction to the Superintending Engineer to decide the representation. Thereafter, a modification application was filed by the power corporation for modifying the order dated 10.10.2002 on the ground that Superintending Engineer has no jurisdiction to decide the representation.

Meanwhile Electricity Act, 2003 came into force on 10.6.2003. Petitioner also filed a modification application before this Court on 10.11.2006 to modify the order dated 10.10.2002, by order dated 13.8.2010, the modification application of the power corporation was allowed and the order dated 10.10.2002 was modified to the extent that Area Level Committee may decide the representation of the petitioner.

That while all these proceedings were going on, a demand notice dated 15.9.2011 was issued by the Executive Engineer for recovery of an amount of Rs.98,07,899/-, the said recovery proceedings were challenged through Writ Petition No.58434 of 2011 and the said writ petition was dismissed. Against the said order, Special Appeal No.2362 of 2011 was filed, which was also dismissed by order dated 8.10.2013. Petitioner-company preferred a special leave petition before the Apex Court and by order dated 11.4.2014 the Apex Court directed that the State Level Committee decided all the issues raised by the petitioner. Order dated 11.4.2014 was modified by the Apex Court on 21.11.2014 to the extent that the word State Level Committee be read as Commissioner. Pursuant to the said order, an appeal was filed before the Appellate Authority under Section 127 of the Electricity Act, 2003.

Sri H.N. Singh, learned Senior Counsel submitted that in view of Clause 8.2(x)(g) & (h) of the Electricity Supply Code, 2005, the final assessment done by the assessing officer in case of theft is subject to the adjudication by the Court and in case decision of the Court that theft is not established the charges levelled and assessment made by the licensee against the consumer or person shall be withdrawn in writing and the connection shall be restored through the original meter. He further submitted that in the appeal before the Commissioner through additional ground no.10 and 11, this fact was taken and pleaded but the appellate authority while passing the order impugned did not take into account the provisions of the Supply Code, 2005 and had dismissed the appeal of the petitioner without deciding the same on merit. He had further relied upon the decision of this Court in case of **Srichand Jain Vs. State of U.P. and others, 2007 (2) AWC 1560** and in decision of **M/S Hasan Steel Pvt. Ltd Vs. Pashchimanchal Vidyut Vitran Nigam Ltd., 2008 (7) ADJ 104.**

Sri Chandan Agarwal, learned Counsel for the

respondent-Power Corporation submits that the appellate authority had taken note of the entire facts of the case and the direction so given by the Apex Court and has come to the finding and has thereafter rejected the appeal of the petitioner. He, however does not dispute to the provisions of Clause 8.2(x)(g) & (h) of the Electricity Supply Code, 2005.

Having considered the argument of the learned Counsel for the parties and the relevant provisions of the Electricity Code, 2005, I find that it was incumbent upon the Appellate Authority who had considered the grounds so raised by the petitioner in his appeal filed under Section 127 and should have recorded finding before the dismissing the appeal of the petitioner.

In view of the above, the order passed by the Appellate Authority i.e. Commissioner, Meerut Division, Meerut, respondent no.1 dated 11.2.2019 is set aside and the matter is remitted back to the Appellate Authority to consider and decide the same in light of provisions of the Electricity Supply Code, 2005 within a period of two months from the date of production of certified copy of this order.

Writ petition stands partly **allowed**.

Order Date :- 28.3.2019

S. Singh